



National Institutes of Health
Bethesda, Maryland 20892

<http://www.nih.gov>

Date: March 19, 2025

From: Minal Jain, Acting Chief Physical Therapy Section, Rehabilitation/Medicine Department

Subject: **SOLE SOURCE JUSTIFICATION AND APPROVAL FOR ONE (1) LiteGait 500X from Mobility Research**

To: **NIH, CLINICAL CENTER, CONTRACTING OFFICER**

1. AGENCY IDENTIFICATION AND CONTRACTING ACTIVITY

Minal Jain; mjain@nih.gov

Requiring Activity: Justification for One (1) LiteGait 500X from Mobility Research

National Institute of Health

Clinical Center

9000 Rockville Pike

Bethesda, MD 20814

COR or AO's Name, contact information:

Monique Arnett, AO ; Monique.arnett@nih.gov

Contracting Activity:

NIH Clinical Center

Office of Purchasing and Contracts

6707 Democracy Blvd

Bethesda, MD 20892

2. NATURE AND/OR DESCRIPTION OF THE ACQUISITION BEING APPROVED

This is a sole source procurement to **Mobility Research** for One (1) LiteGait 500X Mobility device

The NIH Clinical Center (CC) is a 234-bed federally funded, biomedical research hospital located on the NIH campus in Bethesda, Maryland. The Clinical Center is the delivery setting for all NIH intramural clinical research protocols. The hospital complex consists of two main facilities that are connected to each other by "bridges". The original 14-story building is 2.5 million square feet and continues to house the clinical laboratories, imaging sciences, surgical suites, and several outpatient clinics. The 870,000 square foot facility houses inpatient units and day hospitals. The Clinical Center accounts for about half of all NIH-funded clinical research beds in the United States and accommodates about 7,000 inpatient and 70,000 outpatient visits a year. Patients with rare medical conditions are admitted to the NIH Clinical Center from all over the world for the sole purpose of participating in a clinical research protocol. The life span of the body weight supported mobility devices are 10-15 years, and this current device was purchased in 2008. To ensure patient safety for those individuals receiving Rehabilitation Medicine/Physical Therapy services, it is pertinent to replace the equipment which has fallen into disrepair.

The Physical Therapy Section in the Rehabilitation Medicine Department at the National Institutes of Health is located in the world's largest clinical research facility - the Mark O. Hatfield Clinical Research Center. Physical Therapists are responsible for providing clinical and clinical research expertise for patients with rare disorders. Specific assessments are

completed to devise an appropriate plan of care and intervention for these patients. To meet the mission of clinical patient care, the scientific research mission, standards for patient safety at the Mark O. Hatfield Clinical Research Center, (CRC), the Physical therapy Section in the Rehabilitation Medicine Department (RMD) requires the replacement of the current LiteGait mobility device.

State the nature, purpose, and objective(s) of the acquisition and the overall program of which it is a part. Identify the authorizing program legislation, as applicable. Specify any project background that is important to understanding the acquisition and the need it will satisfy.

3. DESCRIPTION OF THE SUPPLIES AND SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

C. Statement of Objectives

This request is for the LiteGait 500X mobility device. The device will allow therapists to assist patients who are unable to ambulate in a safe environment, supporting patients up to 500 pounds, adhering to the Clinical Center's "no lift" policy, ensuring patient safety and minimize employee injury. The LiteGait device comes with lifetime warranty of the frame. Delivery and uncrating is included in the "White Glove" estimate. The sole distributor of the device is Mobility Research. This product is FDA registered and have CE certifications.

Provide a brief (i.e., half-page or less) narrative description of the supplies or services.

The estimated value of this one time obligation will be \$27, 245.

4. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION.

Check the applicable block below.

☒ **FAR 13.106-1(b) (1):** For purchases not exceeding the simplified acquisition threshold (SAT), contracting officers may solicit from one source if the contracting officer determines that the circumstance of the contract action deem only one source reasonably available (e.g. urgency, inclusive licensing agreements, brand name, or industrial mobilization).

☐ **FAR 13.501 (a) (1) (ii) & 2(i):** For actions for commercial supplies or services greater than the SAT but not exceeding \$6.5M, the citation is: Test Program for commercial Items, Section 4202 of the Clinger-Cohen Act of 1996.

5. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

Mobility Research is the only company which manufactures the LiteGait and is FDA registered with CE certifications. This is an important citation in order to meet the research mission of the Mark O. Hatfield Clinical Research Center while maintaining standards of patient safety.

Mobility Research, Inc.
3156 W. Lewis Avenue
Phoenix, AZ 85009
United States

Describe fully why the designated supply/service provider will only meet NIH's needs and the contractor's unique qualifications to provide the requirement. Discuss how those qualifications or the nature of the acquisition relate to the authority cited.

6. A DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS PRACTICABLE

Mobility Research is the only company that manufactures a mobile body supportive device intended to allow a non-ambulant patient to walk in a safe and supportive environment. This allows for increased rehabilitation potential for the patient while minimize employee injury. This device will allow therapists to take this device to the patient's room, on to the patient care units outside of the physical therapy clinic.

Explain the efforts taken (or to be taken) to solicit as many potential offerors as possible.

7. DEMONSTRATION THAT THE ANTICIPATED COST WILL BE FAIR AND REASONABLE

The Physical Therapy Section has maintained the current LiteGait for years beyond the actual lifespan. The cost of the LiteGait is at cost from this company is a value to the government. It was determined that the cost of the LiteGait and the longevity of the products are at a fair and reasonable price for purchase from Mobility Research.

Provide a statement, based on the specific circumstances and type of acquisition proposed, that reflects the steps the CO will take (including documentation) regarding the fairness and reasonableness of the price of the contract/order prior to its award

8. DESCRIPTION OF MARKET RESEARCH CONDUCTED AND THE RESULTS OR STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

Market research was not conducted in this case because Mobility Research is the only company that is able to provide high quality mobility devices, lasting beyond calculated years and is registered with the FDA.

Describe the market research that was conducted and the results of that effort (see FAR Part 10). Examples of market research include: (a) issuing a sources sought announcement in FedBizOpps; (b) publishing a request for information in technical or scientific journals or business publications; (c) reviewing literature published by qualified organizations; (d) contacting knowledgeable acquisition and program officials in Government and industry regarding market capabilities; and (e) convening a presolicitation conference to exchange information with the marketplace. If market research was not conducted, provide an explanation.
(NOTE: Issuing the FBO notice under Item 6. above does not, in and of itself, constitute market research.)

9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

Mobility Research is the manufacturer and exclusive provider of the LiteGait device based on the durability, cost, safety standards and warranty of the equipment. The company will also trouble shoot problems (at no cost) as needed. The Physical Therapy section wishes to continue servicing the

needs of the institutes and patients with the mobility device that is safe to use, efficient, and have a lifetime warranty.

Cite any other factors not mentioned earlier in the justification as to why the requirement cannot be competed.

LISTING OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION.

None

List the sources, if any, that have expressed an interest, in writing, in the acquisition and provide an explanation of why they are not being considered. If no expressions of interest have been received, enter "No other sources have expressed an interest, in writing, in the proposed acquisition."

Any responses, such as capability statements, received in response to a published notice (e.g., a sources sought notice or request for information), must be evaluated. Include all evaluations as an attachment to the JOFOC, along with the names of the individuals who participated in the review and a copy of the communication to each organization that responded. In addition, document any requests made to the CO by interested organizations for a copy of the solicitation or SOW with the following information: (a) the name of and contact information for the organization that submitted the request; (b) any communications with the requestor; and (c) the disposition of the request.

10. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE REQUIRED SUPPLIES OR SERVICES.

None. This equipment has been durable and reliable beyond the years stated in the product description.

Provide a brief statement as to whether or not there are future plans to acquire the same type of supplies or services, e.g., further extensions or renewals by competitive or other means. If subsequent acquisitions are anticipated, cite actions taken, or anticipated, to avoid continued noncompetitive acquisition of the requirement in the future and a schedule for accomplishing those actions.

11. ADMINISTRATIVE OFFICER/PROGRAM OFFICIAL CERTIFICATION

"I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief."

[YOUR NAME, SIGNATURE, AND TITLE]

Administrative Officer or COR

13. CONTRACTING OFFICER'S CERTIFICATION

"I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief."."

[NAME AND SIGNATURE]

Contracting Officer